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Case Number: 23PSCV01465 Hearing Date: August 11, 2026 Dept: 6

CASE

NAME: Laura

Martorana v. City of Azusa, et al.

Plaintiff's

Motion to Enforce Settlement Agreement with Diamond House Construction, Inc.

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion to Enforce Settlement Agreement with Diamond House Construction, Inc. The Court will enter judgment in favor of Plaintiff Laura Martorana and against Defendant Diamond House Construction, Inc. in the amount of \$6,560.00, comprised of \$5,000.00 for the remaining principal settlement payment, \$1,500.00 in attorney fees, and \$60.00 in costs. The Court directs Plaintiff to submit a revised proposed judgment consistent with this ruling for the Court's review and signature within five calendar days of this order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a premises liability case. On May 15, 2023, plaintiff Laura Martorana (Plaintiff) filed this action against defendants City of Azusa, Diamond House Construction, Inc. (collectively, Defendants) and Does 1 to 50, alleging causes of action for general negligence and premises liability.

On November 21, 2023, City of Azusa filed a cross-complaint. July 3, 2024, City of Azusa filed its operative First Amended Cross-Complaint against Diamond House Construction, Inc., Gustavo Leza, and Does 1 to 20, alleging causes of action for declaratory adjudication of equitable indemnity rights and declaratory adjudication of express indemnification rights. On October 4, 2024, City of Azusa filed a Doe amendment substituting 317 S. Irwindale LLC for Doe 1 and Cabinet Gallery, LLC for Doe 2.

On March 24, 2025, Cabinet Gallery LLC filed a cross-complaint against Dapper Plumbing & Septic LLC (Dapper) and Roes 1 to 20, alleging causes of action for total equitable indemnity, comparative indemnity and apportionment of fault, and declaratory relief. On July 2, 2026, Cabinet Gallery LLC dismissed its cross-complaint with prejudice.

On April 9, 2025, 317 S. Irwindale, LLC filed a cross-complaint against Dapper Plumbing & Septic LLC and Moes 1 to 20, alleging causes of action for declaratory relief, implied indemnity, comparative equitable indemnity, total equitable indemnity, implied contractual indemnity, and contribution.

On July 8, 2026, Plaintiff moved to enforce settlement agreement with Diamond House Construction, Inc. The Motion is unopposed.

LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A party may file a motion or other document pertaining to the settlement,

including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

PRELIMINARY ISSUES

“To protect personal privacy and other legitimate interests, parties and their attorneys must not include, or must redact where inclusion is necessary, the following identifiers from all pleadings and other papers filed in the court’s public file, whether filed in paper or electronic form, unless otherwise provided by law or ordered by the court:

...

(2) Financial account numbers

If financial account numbers are required in a pleading or other paper filed in the public file, only the last four digits of these numbers may be used.”

(Cal. Rules of Court, rule 1.201, subd. (a)(2).)

Plaintiff’s

Motion fails to comply with this rule. (Booker II Decl., Ex. 4.) The Court admonishes Plaintiff to comply with the California Rules of Court going forward.

Plaintiff’s Motion also cites an outdated version of Code of Civil Procedure section 664.6, subdivision (a). Specifically, Plaintiff’s Motion reads: “If parties to pending litigation stipulate in a writing signed by the parties outside of the presence of the Court or orally before the Court, the settlement of the case, or part thereof, the Court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the Court may retain jurisdiction over the parties to enforce the settlement until performance in

full of the terms of the settlement.” (Motion, 7:4-7, bold and underline in original.) The current version reads: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a), bold added.) The Court noted this same problem in a recent motion to enforce settlement. (Order Re: Court Ruling (6/22/26).) The Court admonishes Plaintiff to accurately and properly cite to current law going forward. (See Cal. Rules of Professional Conduct, rule 3.3, subd. (a)(1).)

DISCUSSION

Plaintiff

Laura Martorana moves under California Code of Civil Procedure section 664.6 to enforce a written Settlement Agreement and Release (the Settlement Agreement) executed with Defendant Diamond House Construction, Inc., under which Diamond House agreed to pay Plaintiff \$10,000.00 in two \$5,000.00 installments due March 11 and April 10, 2026. Plaintiff contends the Court retains jurisdiction to enforce the Settlement Agreement based on the parties' express agreement, the statute, and the Court's own procedures following Plaintiff's February 10, 2026 conditional Notice of Settlement. Plaintiff argues that the two prerequisites for enforcement — contract formation and a writing containing the material terms — are satisfied by the signed agreement. Plaintiff contends that Diamond House paid only the first \$5,000.00 installment and failed to remit the remaining \$5,000.00, causing undue delay and prejudice despite counsel's efforts to obtain payment. Plaintiff requests entry of judgment ordering payment of the outstanding \$5,000.00, pre- and post-judgment interest, plus \$4,092.00 in attorney fees and costs as the prevailing party under sections 8 and 24 of the Settlement Agreement.

The Court finds enforcement of the Settlement Agreement and entry of judgment proper. The Settlement Agreement is signed by both parties and expressly provides the Court's continuing jurisdiction under Code of Civil Procedure section 664.6. (Booker II Decl., Ex. 1, ¶ 19; Code Civ. Proc., § 664.6.) The evidence further shows that Diamond

House has not paid the outstanding \$5,000.00 balance owed under the Settlement Agreement. (Booker II Decl., ¶¶ 9-16, Exs. 4-5; Code Civ. Proc., § 664.6, subd. (f)(1).)

Plaintiff also seeks prejudgment interest. “Section 664.6 [of the Code of Civil Procedure] authorizes the trial court to enter a judgment reflecting the terms of the parties’ settlement agreement—nothing more, and nothing less. ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’” (BTHHM Berkeley, LLC v. Johnston (2024) 100 Cal.App.5th 1220, 1225 [citation omitted].)

“Prejudgment interest is not a cost, but an element of damages.” (Ibid.) Thus, a court is not authorized to award prejudgment interest where it is not provided for in an agreement under section 664.6 as the judgment would therefore “differ[] materially from the terms of the parties’ agreement.” (Ibid.) As Plaintiff does not contend the Agreement provides for prejudgment interest, the Court declines to award such interest.

Plaintiff also seeks postjudgment interest pursuant to Code of Civil Procedure section 685.010. Code of Civil Procedure section 685.010, subdivision (a)(1) provides a judgment creditor may receive interest “at the rate of 10 percent per annum on the principal amount of a money judgment remaining unsatisfied.” Postjudgment “compensates the judgment creditor for the loss of use of the money until the judgment is paid and it acts as an incentive for the judgment debtor to pay the judgment promptly.” (Roden v. AmerisourceBergen Corp. (2010) 186 Cal.App.4th 620, 659 [citations omitted].)

The Court finds Plaintiff is entitled to postjudgment interest pursuant to Code of Civil Procedure section 685.010.

The Court further finds that Plaintiff is entitled to attorney fees and costs pursuant to paragraph 24 of the Settlement Agreement. (Booker II Decl., Ex. 1, ¶ 24.) However, the Court finds Plaintiff’s counsel’s \$1,000.00 hourly rate excessive for the East Judicial District. “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus.

[Citation.]” (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court will therefore award Plaintiff attorney fees in the amount of \$1,560.00, comprised of 2.0 hours preparing the Motion and 1.0 hour appearing at the hearing on the Motion, multiplied by a \$500.00 hourly rate, and costs in the amount of \$60.00 for the filing fee.

Based on the foregoing, the Court GRANTS Plaintiff’s Motion. The Court will enter judgment in favor of Plaintiff and against Diamond House in the amount of \$6,560.00, comprised of \$5,000.00 for the remaining principal settlement payment, \$1,500.00 in attorney fees, and \$60.00 in costs.

CONCLUSION

The Court GRANTS Plaintiff’s Motion to Enforce Settlement Agreement with Diamond House Construction, Inc. The Court will enter judgment in favor of Plaintiff Laura Martorana and against Defendant Diamond House Construction, Inc. in the amount of \$6,560.00, comprised of \$5,000.00 for the remaining principal settlement payment, \$1,500.00 in attorney fees, and \$60.00 in costs. The Court directs Plaintiff to submit a revised proposed judgment consistent with this ruling for the Court’s review and signature within five calendar days of this order.

Plaintiff is ordered to give notice of the Court’s ruling within five calendar days of this order.